

ASSURED SHORTHOLD TENANCY AGREEMENT

for the letting of a residential dwelling on an
Assured Shorthold Tenancy under Part 1 of the Housing Act 1988

DATE

17 APRIL 2024

PARTIES

- (1) Mr Patrick James Sullivan of 28 Holyhead Road, Handsworth, Birmingham B21 0LJ
(the "Landlord")
(2) Jamie Alexander Watson formerly of 41 Carshalton Road, Birmingham B14 7BD
(the "Tenant")

PROPERTY

Flat 6, 14 Wellington Court, Edgbaston, Birmingham B16 9PJ

TERM

A fixed term of twelve (12) months commencing on 17 April 2024 and ending on 16 April 2025, continuing thereafter as a Statutory Periodic Tenancy until terminated in accordance with this Agreement.

IMPORTANT. This Agreement creates a binding contract between the Landlord and the Tenant. The Tenant should read this document carefully and seek independent legal advice if anything is unclear. The Landlord recommends that this document is signed only after the Tenant has received and read the Department for Levelling Up, Housing and Communities "How to Rent" guide.

This Agreement consists of this front page, the Particulars, the Terms and Conditions, Schedule 1 (Prescribed Information about the Deposit) and Schedule 2 (Inventory and Schedule of Condition, separately initialled).

PARTICULARS

1. The Property	Flat 6, 14 Wellington Court, Edgbaston, Birmingham B16 9PJ (a one-bedroom self-contained flat on the second floor)
2. The Landlord	Mr Patrick James Sullivan 28 Holyhead Road, Handsworth, Birmingham B21 0LJ Tel: 07811 442 309 Email: patrick.sullivan58@hotmail.com
3. The Tenant	Jamie Alexander Watson previously of 41 Carshalton Road, Birmingham B14 7BD Date of birth: 02 January 1998 National Insurance: JM 12 34 56 D
4. The Guarantor	Mrs Sandra Watson, 41 Carshalton Road, Birmingham B14 7BD
5. The Term	Fixed term of 12 months from and including 17 April 2024 to and including 16 April 2025, continuing as a Statutory Periodic Tenancy thereafter.
6. The Rent	£850.00 per calendar month, payable in advance on the 1st day of each month, by standing order to the Landlord's nominated bank account.
7. The Deposit	£980.77 (equivalent to five weeks' Rent), payable by the Tenant to the Landlord prior to the Commencement Date. Deposit Scheme: To be confirmed by the Landlord; see clause 4.
8. Permitted occupiers	The Tenant only. No other person shall reside at the Property without the Landlord's prior written consent.
9. Pets	Not permitted, save with the Landlord's prior written consent (such consent not to be unreasonably withheld for assistance dogs).
10. Smoking	No smoking (including the use of e-cigarettes) is permitted at the Property.
11. Energy Performance Certificate	Rating: D. A copy of the EPC has been supplied to the Tenant prior to occupation.
12. Gas Safety Certificate	Last issued 07 February 2024 by Bromsgrove Gas Services Ltd (Gas Safe Reg. 558112). A copy has been supplied to the Tenant.
13. Electrical Installation Condition Report	EICR last issued 20 October 2023, satisfactory result. A copy has been supplied to the Tenant.
14. Smoke and CO alarms	One mains-wired smoke alarm fitted on each storey. One CO alarm fitted in the kitchen / boiler cupboard. Tested by the Landlord at the start of the tenancy in the Tenant's presence.
15. Right to Rent	The Tenant has provided original documentation establishing his right to rent under the Immigration Act 2014 (UK passport, copy retained by the Landlord).

TERMS AND CONDITIONS

1. Definitions and interpretation

1.1 In this Agreement the following words have the following meanings:

- (a) "Agreement" means this tenancy agreement, including the Particulars and any Schedule.
- (b) "Commencement Date" means the date specified at item 5 of the Particulars.
- (c) "Deposit" means the sum specified at item 7 of the Particulars.
- (d) "Property" means the property specified at item 1 of the Particulars and any fixtures and fittings included in the Inventory.
- (e) "Rent" means the rent specified at item 6 of the Particulars.
- (f) "Term" means the term specified at item 5 of the Particulars.
- (g) "Authorised Scheme" means a tenancy deposit scheme authorised under section 212 of the Housing Act 2004.

1.2 References to legislation include any subsequent modification or re-enactment. Words in the singular include the plural and vice versa. Where there is more than one Tenant, their obligations are joint and several.

2. Grant

2.1 In consideration of the Rent and the covenants on the part of the Tenant, the Landlord lets to the Tenant the Property for the Term as an Assured Shorthold Tenancy within the meaning of the Housing Act 1988.

- (a) Together with the right for the Tenant and his Permitted Occupiers to use the common parts of the building (including stairwells and the cycle store) in common with the Landlord and other tenants of the building.
- (b) Reserving to the Landlord the right of access at reasonable times on at least 24 hours' written notice (save in emergency) to inspect the Property and to carry out any repairs or works required.

3. Rent

3.1 The Tenant shall pay the Rent monthly in advance on the 1st day of each calendar month by standing order. The first payment of Rent shall be made on or before the Commencement Date.

- (a) If any payment of Rent or other monies due under this Agreement remains unpaid for more than 14 days after the date on which it became due, the Tenant shall pay interest on the amount unpaid at 3% per annum above the Bank of England base rate from time to time, calculated on a daily basis, until payment in full.
- (b) Any payment received from the Tenant shall be applied first to any interest, then to any other monies due, then to outstanding Rent.
- (c) Time shall be of the essence in respect of the payment of Rent.

3.2 The Landlord may serve notice under section 13 of the Housing Act 1988 to increase the Rent during any Statutory Periodic Tenancy.

4. Deposit and Tenancy Deposit Protection

4.1 On or before the Commencement Date, the Tenant shall pay the Deposit to the Landlord by cleared funds. The Deposit is paid as security for the performance by the Tenant of his obligations under this Agreement.

- (a) The Landlord shall, within thirty (30) days of receipt of the Deposit, protect it in an Authorised Scheme in accordance with section 213 of the Housing Act 2004.

(b) The Landlord shall, within thirty (30) days of receipt of the Deposit, give the Tenant the prescribed information about the Deposit and the Authorised Scheme in accordance with the Housing (Tenancy Deposits) (Prescribed Information) Order 2007 (the "Prescribed Information"); see Schedule 1.

(c) The Landlord shall not require the Tenant to pay any sum by way of deposit or otherwise that exceeds the cap permitted by the Tenant Fees Act 2019 (five weeks' Rent).

(d) Subject to clauses 4.1(e) and 4.1(f), the Deposit shall be returned to the Tenant within ten (10) working days after the end of the tenancy.

(e) The Landlord may make deductions from the Deposit for: (a) any unpaid Rent; (b) the cost of remedying any breach of this Agreement by the Tenant including damage to the Property beyond fair wear and tear; (c) the cost of removing items left by the Tenant at the end of the tenancy.

(f) Any dispute about deductions shall be resolved through the dispute-resolution mechanism of the Authorised Scheme.

(g) The Deposit is not a payment of Rent. The Tenant shall not be entitled to set off the Deposit against any payment of Rent, including the last month's Rent of the Term.

4.2 No interest shall be payable to the Tenant on the Deposit.

5. Tenant's covenants

5.1 The Tenant covenants with the Landlord:

(a) to pay the Rent and any other monies due under this Agreement on the days and in the manner specified;

(b) to use the Property only as a single private dwelling for the occupation of the Tenant and any Permitted Occupier;

(c) to keep the interior of the Property in good and tenantable repair and condition (fair wear and tear excepted);

(d) to keep the fixtures, fittings and contents of the Property listed in the Inventory in their existing state of repair and condition (fair wear and tear excepted);

(e) not to make any alteration or addition to the Property, or redecorate the Property in a different colour scheme, without the Landlord's prior written consent;

(f) to inform the Landlord promptly in writing of any defect or want of repair at the Property;

(g) to allow the Landlord and his agents and contractors access to the Property at reasonable times on 24 hours' written notice to inspect, repair, or carry out works (immediate access in case of emergency);

(h) not to assign, sublet, charge, part with or share possession of the Property or any part of it;

(i) not to keep any pets at the Property without the Landlord's prior written consent;

(j) not to do or permit anything to be done at the Property which is or may become a nuisance, annoyance, disturbance or inconvenience to the Landlord or to any neighbouring occupier;

(k) not to use the Property for any business, trade or profession;

(l) to pay during the Term all charges for the supply of gas, electricity, water, telephone, internet and television services consumed at the Property, council tax, and any other outgoings;

(m) to maintain a contents insurance policy in respect of the Tenant's belongings at the Property;

(n) to test the smoke and carbon monoxide alarms at least once per month and to replace any battery as required;

(o) not to alter or interfere with the locks of the Property and not to install any additional locks without the Landlord's prior written consent;

(p) to register the Tenant's correspondence address with the Landlord and to notify the Landlord promptly of any change.

5.2 The Tenant acknowledges that he has been given a copy of the current edition of the "How to Rent" guide before the Commencement Date.

6. Landlord's covenants

6.1 The Landlord covenants with the Tenant:

- (a) to give the Tenant quiet enjoyment of the Property during the Term;
- (b) to keep in repair the structure and exterior of the Property (including drains, gutters and external pipes) in accordance with section 11 of the Landlord and Tenant Act 1985;
- (c) to keep in repair and proper working order the installations in the Property for the supply of water, gas, electricity and sanitation, and for space heating and water heating;
- (d) to ensure that the Property is fit for human habitation throughout the tenancy in accordance with the Homes (Fitness for Human Habitation) Act 2018;
- (e) to ensure that any gas appliance, flue or fitting is checked annually by a Gas Safe-registered engineer and to provide the Tenant with a copy of the gas safety record;
- (f) to ensure that the electrical installation is in a satisfactory condition for continued use, in accordance with the Electrical Safety Standards in the Private Rented Sector (England) Regulations 2020;
- (g) to insure the Property and the Landlord's fixtures and fittings against the standard insurer's risks (the Landlord's insurance does not cover the Tenant's belongings).

7. Forfeiture

7.1 If at any time during the Term: (a) the Rent or any part of it remains unpaid for 14 days after becoming due (whether formally demanded or not); or (b) any other obligation on the Tenant's part is not performed and observed; or (c) any of the events specified in section 8 of the Housing Act 1988 has happened, the Landlord may re-enter the Property (or any part of it in the name of the whole) and on such re-entry the tenancy shall come to an end (without prejudice to any of the Landlord's rights or remedies). This clause does not authorise re-entry in breach of the Protection from Eviction Act 1977 and the Landlord shall in any event obtain a court order before any physical re-entry.

8. Section 21 and Section 8 notices

8.1 The Landlord may serve a notice under section 21 of the Housing Act 1988 to recover possession of the Property after the end of the fixed term, subject to the requirements of section 21 and the Deregulation Act 2015.

- (a) The Landlord may also serve a notice under section 8 of the Housing Act 1988 relying on any of the grounds set out in Schedule 2 to that Act.

9. Notices

9.1 Any notice given under this Agreement shall be in writing and shall be deemed to have been duly given if delivered personally, sent by first-class post to the address of the recipient stated in the Particulars, or sent by email to the email address of the recipient stated in the Particulars (or such other address or email address as the recipient may nominate in writing).

- (a) A notice given by post shall be deemed to have been received on the second working day following posting; a notice given by email shall be deemed to have been received at the time of transmission, unless an automated bounce-back is received.

10. Tenant Fees Act 2019

10.1 The Landlord acknowledges that the only payments which may be required from the Tenant under this Agreement are: (a) the Rent; (b) the Deposit; (c) a holding deposit equivalent

to one week's Rent (which has been refunded against the first month's Rent); (d) reasonable charges for the loss of keys or other security devices; (e) reasonable interest on overdue Rent (clause 3); and (f) damages for breach of this Agreement.

11. End of tenancy

11.1 At the end of the Term the Tenant shall: (a) yield up the Property and the Inventory items in the same state of repair and condition as at the Commencement Date (fair wear and tear excepted); (b) remove all the Tenant's belongings from the Property; (c) return all keys to the Landlord; (d) provide the Landlord with a forwarding address.

(a) If the Tenant continues to occupy the Property at the end of the fixed Term without the Landlord's agreement, he shall pay mesne profits at the daily rate of the Rent for each day after the end of the Term until vacant possession is delivered up.

12. Joint and several liability

12.1 Where there is more than one person comprising the Tenant, the obligations of the Tenant under this Agreement are joint and several.

13. Governing law and jurisdiction

13.1 This Agreement is governed by and shall be construed in accordance with the laws of England and Wales. The parties submit to the exclusive jurisdiction of the courts of England and Wales.

14. Entire agreement

14.1 This Agreement (including the Particulars and any Schedule) sets out the entire agreement between the parties and supersedes any prior representation, agreement or understanding.

SIGNATURE PAGE

EXECUTED by the parties on the date stated at the top of the Particulars.

Signed by the Landlord

P. J. Sullivan

Mr Patrick James Sullivan
Date: 17 / 04 / 2024

In the presence of:

E Carnegie

Witness name: Eilidh Carnegie
Witness address: 12 Forde Avenue, Birmingham B16 8RD
Occupation: Civil Servant

Signed by the Tenant

Jamie A Watson

Jamie Alexander Watson
Date: 17 / 04 / 2024

In the presence of:

M Whittaker

Witness name: Marcus Whittaker
Witness address: 4 Tilehurst Mews, Birmingham B14 6QE
Occupation: Software Engineer

Initialled by the Tenant on each preceding page:

p.1	p.2	p.3	p.4	p.5	p.6
JAW	JAW	JAW	JAW	JAW	JAW

SCHEDULE 1

Prescribed Information about the Deposit

(to be completed and given to the Tenant within 30 days of receipt of the Deposit, in accordance with the Housing (Tenancy Deposits) (Prescribed Information) Order 2007)

(a) Amount of the Deposit	£980.77
(b) Address of the Property	Flat 6, 14 Wellington Court, Edgbaston, Birmingham B16 9PJ
(c) Name and contact details of the Authorised Scheme	To be inserted on registration of the Deposit with the chosen scheme.
(d) Name and contact details of the Landlord	Mr Patrick James Sullivan 28 Holyhead Road, Handsworth, Birmingham B21 0LJ Tel: 07811 442 309 Email: patrick.sullivan58@hotmail.com
(e) Name and contact details of any letting agent	Not applicable; let directly by the Landlord.
(f) Name and contact details of the Tenant	Jamie Alexander Watson, currently of (the Property)
(g) Circumstances when all or part of the Deposit may be retained	See clause 4.1(e) of the Tenancy Agreement.
(h) Name and contact details of the dispute-resolution service	Provided by the relevant Authorised Scheme on registration.
(i) Confirmation that the information is accurate to the best of the Landlord's knowledge	I confirm the above information is accurate to the best of my knowledge and belief and have given the Tenant the opportunity to sign as having received the information. Landlord's signature: _____ Date: _____

NOTE. Items (c) and (h) of this Schedule are blank because the Landlord has stated that the scheme will be confirmed once registered. The Tenant has not received any subsequent communication confirming the chosen scheme.